

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following
BACKGROUND

FIRST: On April 15, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against BANCO BILBAO VIZCAYA ARGENTARIA, S.A. (hereinafter, the respondent), through the Agreement transcribed below:

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AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following
FACTS

FIRST: On November 13, 2022, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against BANCO BILBAO VIZCAYA ARGENTARIA, S.A., with NIF A48265169 (hereinafter, the respondent or BBVA). The reasons for the complaint are as follows:

The complainant states that the respondent requested ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L. to include their personal data in its solvency file on August 12, 2021, without properly providing prior notice, as the postal address to which ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L. sent the notification was not the exact address of the respondent, but rather incomplete.

The complainant states that they became aware of the inclusion of their personal data in the solvency file of ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L. because they have been prevented from accessing loans from financial entities, as well as formalizing the contracting of certain services such as changing telephone and electricity companies, due to their data being listed in the aforementioned file.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), on January 9, 2023, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

On January 12, 2023, ASNEF-EQUIFAX submitted a document providing the following documentation:

- A copy of the response dated January 12, 2023, sent to the complainant informing them of the actions taken and again providing their status in the ASNEF-EQUIFAX file (no data is listed in the Asnef and Asnef Empresas files).
- A copy of the Certification dated January 10, 2023, issued by the provider of the Generation, Printing, and Availability Service for Postal Shipments - Correos and/or Unipost-SERVINFORM, S.A., certifying the date of inclusion of the notification in question, along with the rest of the communications issued in the process, and the date it was made available to the postal service (August 17, 2021).
- A copy of the notification of inclusion.
- Delivery note and receipt at the Correos office ***DELIVERY NOTE.1 and of Hispapost, dated August 17, 2021, with its admission date value.
- A copy of the return of said notification, with the reasons indicated by the postal service, "Incorrect Address."

Additionally, ASNEF-EQUIFAX states among other points the following:

- That file ***FILE.1, dated December 11, 2022, where a cancellation right was processed, proceeding to remove the data provided by the entity BBVA on December 21, 2022, and listing the email address provided by the complainant as the email address for sending that response.
- That the complainant's data was included in said file on August 12, 2021, at the request of BBVA, due

to a debt arising from a credit card contracted with that entity. The date of data viewing is noted as September 11, 2021. Each of the files contains the Consultation History, with the entities that have accessed the complainant's data in the six months prior.

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Regarding the absence of notification of the inclusion of your data in the file at the request of BBVA in the ASNEF-EQUIFAX file, it is indicated that, after consulting the Auxiliary Notification File in the ASNEF-EQUIFAX file, it is recorded that the notification was made to you via the notification of reference ***REFERENCIA.1, issued on August 13, 2021, through ordinary postal mail to the address provided by the creditor, that is, ***DIRECCIÓN.1. However, it is reported that it was returned, recorded in their systems since October 29, 2021.

THIRD: On February 13, 2023, in accordance with Article 65 of the LOPDGDD, the claim submitted by the claimant was admitted for processing.

FOURTH: The General Subdirector for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On June 16, 2023, information requests were sent to BBVA and to ASNEF-EQUIFAX.

BBVA was requested to provide the following information:

- 1.- A copy of contract number ***XXXX for the SHOP CAR MASTERCARD card registered by BBVA in the name of the claimant.
- 2.- A copy of contract number ***XXXX registered by BBVA in the name of the claimant.
- 3.- Documentation justifying the payment requests made to the claimant regarding the debt.
- 4.- A copy of the contract signed between BBVA and ASNEF-EQUIFAX for the inclusion of the claimant in the debtors' register managed by ASNEF-EQUIFAX.
- 5.- Justifying documentation of the communications of the claimant's data for their inclusion/exclusion in the ASNEF-EQUIFAX debtors file.
- 6.- Any other information deemed appropriate.

In its response to the aforementioned information request, BBVA makes, among others, the following statements:

- It provides a copy of the claimant's application for the Mercadona card dated December 5, 2011. Along with a document titled "REGLAMENTO TARJETA MERCADONA" in which section one states that the card will be issued by the entity UNOE BANK S.A. Indicating that the contract for the mentioned card was registered in BBVA's systems with number ***XXXX on January 16, 2012.
- And stating that, due to the termination of the collaboration agreement between Mercadona and BBVA, the aforementioned card was replaced by the BBVA Mastercard Shop Card number ***XXXX, indicating that this card was sent to the claimant's address on December 16, 2019. It provides a document of information regarding the termination of the collaboration agreement between both entities along with the document of "CONDICIONES GENERALES DE LA TARJETA MASTERCARD SHOP CARD."

Although the documents provided are generic communication documents regarding the termination of the agreement between Mercadona and BBVA and the general conditions of the new card, they do not identify the person to whom they are addressed, nor the date on which they are issued, and these documents are not signed.

- It also sends movements of the aforementioned BBVA Mastercard Shop Card from January 16, 2020.

- To attempt to justify the existence of a payment request for the debt to the claimant before their inclusion in the ASNEF-EQUIFAX file on August 12, 2021, it provides certificates issued by

ASNEF-EQUIFAX and SERVIFORM, S.A. stating that the payment of the debt was requested on June 15, 2021, and July 15, 2022, in which it is recorded that those payment requests were sent by ordinary mail on June 16 and 17 and July 16 and 17, 2021, to the claimant's postal address, without any record of the aforementioned requests being returned.

- It also provides a copy of the contract signed between BBVA and ASNEF-EQUIFAX for the inclusion of debtors in the debtors' register managed by ASNEF-EQUIFAX.

ASNEF-EQUIFAX was requested to provide the following information:

1.- A copy of the contract signed between BBVA and ASNEF-EQUIFAX for the inclusion of the claimant as a debtor in the debtors' register managed by ASNEF-EQUIFAX.

2.- Justifying documentation of the communications between ASNEF-EQUIFAX and BBVA for the inclusion/exclusion in the ASNEF debtors file of the claimant's data.

3.- Documentation of the actions taken by ASNEF-EQUIFAX with BBVA, due to the impossibility of notifying the inclusion of the claimant in the ASNEF-EQUIFAX debtors file, due to "Incorrect Addresses" as indicated by the postal service.

4.- Any other information deemed appropriate.

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In its response to the ASNEF-EQUIFAX request, the defendant makes the following statements, among others:

- It provides a copy of the contract signed between BBVA and ASNEF-EQUIFAX for the inclusion of debtors in the debtor registry managed by ASNEF-EQUIFAX.

- Regarding the inclusion of the claimant's data in the file, it states that the data transferred to the ASNEF-EQUIFAX file by BBVA, S.A. was registered on 12/08/2021 due to non-payment of a credit card as the account holder, and there was an outstanding balance. This operation was assigned the corresponding code.

- The cancellation of the data was carried out on December 21, 2022, and on December 11, 2022, the claimant sent a letter to ASNEF-EQUIFAX exercising their right to cancellation.

- Next, after describing the procedure followed for all processes of sending Notification of Inclusion letters, it indicates that in the specific case of the claimant, according to the query to the Auxiliary Notification file in the ASNEF-EQUIFAX file, it is noted that the inclusion of their data by BBVA was notified under the reference communication ***REFERENCIA.1, issued on August 13, 2021, via ordinary postal mail to the address provided by BBVA: ***DIRECCIÓN.2.

- Since October 29, 2021, there is a record of the return of the same, with the reason selected by the postal service being 01, which corresponds to "Incorrect Address."

- Upon receiving the return of the notification, as previously indicated, a confirmation request was generated to the entity, dated October 29, 2021, to review the mailing address of the notification and proceed to cancel the data if it is incorrect or confirm it as correct. The entity, with user ***USUARIO.1, indicates that the address is correct and consequently the data remains registered in the file.

It should be highlighted for its relevance to the facts subject to the complaint that BBVA has provided a screenshot from its systems showing that the claimant's address was registered at ***DIRECCIÓN.2.

Furthermore, from the documentation provided, it is evident that BBVA sent payment requests to the aforementioned address of the claimant.

FIFTH: According to the "Annual Report 2022," published at ***URL.1, in 2022 BBVA's profit amounted to (...), and it had more than (...) clients, as stated in the diligence included in the file dated February 14, 2024.

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I

Competence

In accordance with the provisions of Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, it is evident that the defendant requested ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L. to include the personal data of the claimant in its solvency file on August 12, 2021, without properly carrying out the prior notice, as the postal address to which this notice was sent by ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L. was not the correct address, as it was not adequately provided by the defendant.

The address provided by the defendant to ASNEF-EQUIFAX was: ***DIRECCIÓN.1

The correct address, which is in the database of the defendant entity, is: ***DIRECCIÓN.2.

III

Typification of Article 5 of the GDPR

Article 5 of the GDPR establishes that personal data shall be:

"a) processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency');

b) collected for specified, legitimate purposes and not further processed in a manner that is incompatible with those purposes; in accordance with Article 89, paragraph 1, further processing of personal data for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes shall not be considered incompatible with the initial purposes ('purpose limitation');

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');

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d) accurate and, if necessary, updated; all reasonable measures will be taken to ensure that inaccurate personal data is erased or rectified without delay concerning the purposes for which it is processed ("accuracy");

e) maintained in a manner that allows the identification of the data subjects for no longer than is necessary for the purposes of processing personal data; personal data may be kept for longer periods as long as it is processed solely for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, without prejudice to the application of appropriate technical and organizational measures imposed by this Regulation to protect the rights and freedoms of the data subject ("storage limitation");

f) processed in such a way as to ensure an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ("integrity and confidentiality").

2. The data controller shall be responsible for compliance with the provisions of paragraph 1 and shall be able to demonstrate it ("proactive responsibility").

In this case, the respondent requested ASNEF-EQUIFAX, INFORMATION SERVICES ON

SOLVENCY AND CREDIT, S.L. to include the personal data of the claimant, providing the following email address for prior notice: ***ADDRESS.1, despite the fact that the postal address in the database of the respondent entity is: ***ADDRESS.2.

Therefore, such facts could constitute an infringement attributable to the respondent for violating Article 5.1.d) of the GDPR, which requires that the personal data collected be accurate and, if necessary, updated; thus, they must take all reasonable measures to ensure that inaccurate personal data is erased or rectified without delay concerning the purposes for which it is processed ("accuracy"); therefore, by not providing the exact address of the claimant, the respondent has caused serious harm to the claimant, as they could not be aware of their inclusion in solvency files, since the notice of inclusion in the solvency file was sent to an inaccurate email address, as this had not been updated by the respondent, which constitutes a violation of the principle of accuracy regulated in Article 5.1 d) of the GDPR.

IV

Classification and qualification of the infringement

If confirmed, the aforementioned infringement of Article 5.1.d) of the GDPR could constitute the commission of the infringement classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9."

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that:

"Infringements are constituted by acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law."

For the purposes of prescription, Article 72.1 titled "very serious infringements" of the LOPDGDD indicates:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

V

Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in Article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and detriment suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under...

of Articles 25 and 32;

- e) any previous infringement committed by the data controller or the data processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or the data processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or the data processor in relation to the same matter, compliance with such measures;
- j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In this case, considering the severity of the established infringements, particularly regarding the consequences that their commission causes to the complaining party, the imposition of a fine is warranted, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Thus, the status of a large company and the turnover of the complained party are considered beforehand.

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following criteria established by Article 83.2 of the GDPR and Article 76 of the LOPDGDD:

As aggravating factors:

Article 83.2.a) of the GDPR: “a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of affected parties and the level of damage and harm they have suffered.”

The nature and gravity of the infringement, as the communication by BBVA to the entity responsible for the Asnef file of an inaccurate address prevented the complaining party from knowing that their data was registered in that file, which affects the ability of the data subject to exercise true control over their data.

Article 83.2.b) GDPR: “b) negligence in the processing of data.”

The notable negligence observed in the commission of the infringement, as the complained party did not update the data of the complaining party, since upon receiving the return of the notification, ASNEF-EQUIFAX, INFORMATION SERVICES ON SOLVENCY AND CREDIT, S.L. formalized a request for confirmation to the complained party, dated October 29, 2021, to review the notification's mailing address and proceed to delete the data if it was incorrect or confirm it as correct, but the complained party indicated that the address was correct and consequently the data remains registered in the asset solvency file.

Article 76.2.b) of the LOPDGDD: "b) The connection of the infringer's activity with the processing of personal data."

The high connection of the infringer's activity with the processing of personal data, considering the level of establishment of the entity and the activity it develops, which involves personal data of millions of customers. This circumstance determines a higher degree of demand and professionalism and,

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Consequently, the liability of the responding entity in relation to the processing of the data.

The balance of the circumstances contemplated in Article 83.2 of the GDPR regarding the infringement committed by violating the provisions of Article 5.1.d) of the GDPR allows for an initial sanction of €200,000 (two hundred thousand euros).

VI

Adoption of Measures

If the infringement is confirmed, it may be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...".

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided for in Article 83.2 of the GDPR.

In this act, it is established what the infringement committed has been and the facts that give rise to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows its organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, if the infringement is confirmed, in the resolution adopted, this Agency may require the responsible entity to, within one month, prove that it has rectified the personal data concerning the claimant reported to the Asnef file and, where appropriate, established adequate mechanisms to ensure that the incident does not occur again.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may motivate such conduct to initiate further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEEDINGS against BANCO BILBAO VIZCAYA ARGENTARIA, S.A., with NIF A48265169, for the alleged infringement of Article 5.1 d)

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of the GDPR, classified under Article 83.5 of the GDPR and deemed very serious for the purposes of prescription, in accordance with Article 72.1 a) of the LOPDGDD.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection during the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be in the amount of €200,000 (two hundred thousand euros) without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to BANCO BILBAO VIZCAYA ARGENTARIA, S.A., with NIF A48265169, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number indicated in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €160,000, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at €160,000, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be set at €120,000.

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In any case, the effectiveness of either of the two reductions mentioned will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (160,000 or 120,000 euros), you must make it effective by depositing it into account no. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are adhering.

You must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The sanctioning procedure will have a maximum duration of twelve months from the date of the

initiation agreement or, where applicable, from the draft initiation agreement. Once this period has elapsed, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, the notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid. Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On June 6, 2024, the respondent has proceeded to pay the sanction in the amount of 120,000 euros making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to submit allegations to the opening of the procedure, entails the waiver of any action or appeal in the administrative route against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

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FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, measures could be imposed on the responsible party to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: “The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading “Termination in sanctioning procedures” provides as follows:

“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility,

the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with respect to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

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3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided for in this section may be increased by regulation.

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202402432, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER BANCO BILBAO VIZCAYA ARGENTARIA, S.A. to notify the Agency of the adoption of the measures described in the legal grounds of the Agreement of initiation transcribed in this resolution, within 1 month from the date this resolution becomes firm and enforceable.

THIRD: TO NOTIFY this resolution to BANCO BILBAO VIZCAYA ARGENTARIA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1259-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

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